



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 2, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

**Re: CCRB Case No. 202206638 (Incident Date: October 2, 2022) regarding Sergeant Max Cheung,
Tax No. 958401 (DADS No. 2024-29801)**

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation against Sergeant Cheung.

In this case, Sergeant (then Police Officer) Cheung and his partner were conducting quality of life enforcement in the transit system when they attempted to place a male individual under arrest. During that encounter, a female individual pushed the male individual several times and walked between the officers and the male individual multiple times. As the confrontation between the officers and the male individual escalated, the female individual came up from behind Sergeant Cheung, while he had his conducted electrical weapon out and trained on the male individual, and touched him on the back, on the side of his body where he carried his firearm. Startled, the sergeant pushed the female individual back, causing her to fall onto the floor. Sergeant Cheung then continued to deal with the male individual who was exhibiting active aggression. As soon as that threat ended, and the male individual was handcuffed, Sergeant Cheung helped the female individual up to her feet. There were no injuries to anyone involved in this incident.

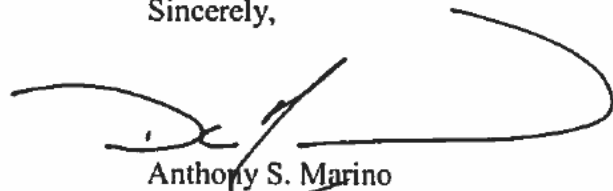
The CCRB substantiated an allegation against Sergeant Cheung that he used excessive force when he pushed the female individual. The Police Commissioner disagrees and finds Sergeant Cheung's use of force to be within Department guidelines.

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Website: <http://nyc.gov/nypd>

Therefore, considering the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Sergeant Cheung for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office